# FREELANCE SERVICES AGREEMENT

**The Rate Guide — Freelancer's Contract Pack**

*Review before use. Not a substitute for legal advice. Have a local attorney review before first use.*

---

## HOW TO USE THIS DOCUMENT

Fill every `[BLANK]`. Read every `[DECISION]` note and pick the option that fits your situation. The `Protects you from:` lines explain why each clause exists — skip them when sharing the final contract with a client.

Delete all annotation text (brackets, notes, this intro) before sending. What remains is your contract.

---

## FREELANCE SERVICES AGREEMENT

**Agreement Date:** `[Date you're sending this]`

**Between:**

`[Your Full Legal Name or Business Name]` ("Contractor")

`[Your Address — City, State is sufficient]`

**And:**

`[Client Legal Business Name]` ("Client")

`[Client Address]`

This Agreement governs the services described below. By signing, both parties agree to the terms.

---

## 1. SERVICES

Contractor will provide the following services:

- `Cinematography / Director of Photography services for [Project Name]`
- `Offline and online editorial services for [Project Name]`
- `Color grading and delivery for [Project Name]`
- `Motion graphics design and animation for [Project Name]`
- `Production coordination services for [Project Name]`

**Project:** `[Project name and brief description — one sentence]`

**Shoot / Work Dates:** `[Date(s) or date range]`

**Deliverables:** `[List the specific files or outputs you're responsible for. Be exact.]`

Examples:

- Edited sequence exported as ProRes 4444, 4K, 23.976 fps
- Color-graded DPX sequence + H.264 client reference files
- 30-second and 60-second cuts with three rounds of revisions included
- Motion graphics package: title cards, lower thirds, end card (After Effects project + renders)

> **DECISION** *Include or exclude deliverables here? If the scope is complex, reference a separate Scope Document ("per the attached Project Brief dated `[Date]`"). For simple jobs, list deliverables directly.]*

> ***Protects you from:*** *Scope creep. If deliverables aren't defined in writing, clients can claim "we thought you were also doing X." This list is what you agreed to do. Anything beyond it is a Change Order (see Section 7).*

---

## 2. RATE AND PAYMENT

### 2A. COMPENSATION

> **DECISION** *Choose your billing model and delete the others.*

**Option A — Day Rate**

Contractor's day rate is **$** `[Amount]` **per 10-hour day**. Days exceeding 10 hours will be billed at **$** `[Amount]` **/hour** (1/10th of the day rate) in one-hour increments.

**Option B — Project Rate**

Total project compensation is **$** `[Amount]`, inclusive of all deliverables described in Section 1. Revisions beyond those specified in Section 7 will be billed at Contractor's hourly rate of **$** `[Amount]` **/hour**.

**Option C — Combination**

`[Number]` shoot days at **$** `[Amount]` **/day** (day rate) plus **$** `[Amount]` for post-production services (project rate), for a total of **$** `[Total]`

> ***Protects you from:*** *"We thought the edit was included in your day rate." Day rate covers the shoot day. Post is billed separately unless you say otherwise in writing.*

## 2B. DEPOSIT

> **DECISION** *Whether to require a deposit depends on project size and client history.*

A non-refundable deposit of `[25–50%]` **($** `[Amount]` **)** is due upon signing. Work will not commence until the deposit is received.

> **DECISION** *For repeat clients you trust, you may waive the deposit. For new clients or projects over $2,000, always require one. 50% is standard for large projects; 25–30% is standard for smaller ones.*

> ***Protects you from:*** *Showing up on set, doing the work, and then having the client disappear or decide not to proceed. The deposit is your insurance against a cancelled project that consumed your prep time.*

## 2C. PAYMENT SCHEDULE

> **DECISION** *Choose a payment schedule that fits the project.*

### Option A — Net 15 (recommended for new clients)

All invoices are due within 15 days of receipt. Late payments accrue interest at `[1.5–2%]` per month.

### Option B — Net 30

All invoices are due within 30 days of receipt. Late payments accrue interest at `[1.5–2%]` per month.

### Option C — Milestone-Based (for large projects)

- 25% upon signing
- 25% at start of production
- 25% upon delivery of first cut / rough grade
- 25% upon final delivery

> **DECISION** *Net 15 is appropriate for new clients and clients who have been slow to pay in the past. Net 30 is standard for production companies with established accounting systems. Never go Net 60 without negotiating a higher rate to account for the cash-flow cost.*

> ***Protects you from:*** *Waiting 90 days to get paid for work you completed two months ago. Payment terms are a business decision, not a courtesy — set them clearly upfront.*

## 2D. LATE PAYMENTS

Invoices unpaid after the due date will accrue interest at `[1.5]` **% per month** (18% annually) on the outstanding balance. Contractor reserves the right to pause or suspend delivery of work product until the account is current.

> ***Protects you from:*** *Clients who use "we're processing it" as an indefinite payment delay strategy. The interest clause changes the calculus — suddenly processing it quickly is in their financial interest.*

### 2E. EXPENSES

Client will reimburse Contractor for all pre-approved out-of-pocket expenses within `[15]` days of receipt of itemized documentation. Expenses exceeding **$ `[50–100]`** require written approval before they are incurred.

> **DECISION** *Set the approval threshold based on the project. For commercials or broadcast work: $100–200. For smaller or indie projects: $50. This prevents disputes over "who approved the $300 hard drive."*

Expenses may include but are not limited to: travel, parking, accommodation, equipment rental, data management, shipping, and consumables.

> ***Protects you from:*** *Paying for $600 in drives out of pocket and then spending three months chasing reimbursement. Pre-approval in writing means there's no dispute about whether it was authorized.*

---

## 3. INTELLECTUAL PROPERTY

### 3A. WORK-FOR-HIRE AND OWNERSHIP

> **DECISION** *This is the most consequential section in the contract. Read carefully.*

**Option A — Work-For-Hire (client owns everything)**

Work product created by Contractor under this Agreement is "work made for hire" as defined under 17 U.S.C. § 101. All rights, title, and interest — including copyright — vest in Client upon full payment. Contractor retains no ownership interest in the final work product.

`[Use Option A for: commercial work, corporate video, branded content where the client is paying specifically to own and control the content.]`

**Option B — License Only (Contractor retains copyright)**

Contractor retains full copyright ownership of all work product created under this Agreement. Client is granted a `[non-exclusive / exclusive]` license to use the final deliverables for `[the specific agreed purpose, e.g., digital marketing on owned channels / broadcast in the United States / perpetual worldwide use]`. No other use is permitted without written permission from Contractor and additional compensation.

`[Use Option B for: artistic projects, documentary work, music videos where you want to retain ownership or limit client usage rights.]`

All rights, title, and interest in the final deliverables transfer to Client upon receipt of final payment in full. Until full payment is received, Contractor retains all copyright and ownership.

`[Use Option C when Option A applies but you want payment as a hard condition of transfer — useful for protecting yourself if a client stops paying mid-project.]`

> ***Protects you from:*** *A client claiming they own your camera footage, your edit, your grade, or your motion graphics before they've paid you a dollar. Option C is the safest default for most freelancers. If a client pushes back on IP terms, that's information.*

### 3B. RAW MATERIAL

Unless explicitly stated in this Agreement, **raw footage, source files, project files, and unrendered assets remain the property of Contractor** and will not be delivered to Client.

> **DECISION** *Only include raw files in the deliverables if you've negotiated and priced for it. Raw file delivery is a separate line item. If the client wants the Premiere project, the Resolve project, or the unrendered AE comps, that's an additional deliverable — price it accordingly.*

> ***Protects you from:*** *A client asking for "all the footage" or "the project file" after you've delivered the final cut, expecting it's included in your original rate.*

---

## 4. CREDIT AND REEL RIGHTS

### 4A. SCREEN CREDIT

> **DECISION** *Whether credit is guaranteed depends on the project type. For narrative/documentary: important. For commercial/corporate: often not applicable.*

Client will provide Contractor with credit `[on screen / in promotional materials / both]` as: `[Your name and title — e.g., "Director of Photography: [Name]"]`.

> **DECISION** *Add this clause for narrative, documentary, and festival work. For corporate work, credit is usually not included and you can omit this section.*

### 4B. PORTFOLIO AND REEL RIGHTS

Contractor retains the right to use clips, stills, and excerpts from the completed work in their portfolio and promotional reel for the purpose of demonstrating their craft to prospective clients. This right is non-commercial and applies regardless of any confidentiality provisions.

> **DECISION** *Clients will sometimes try to restrict this with NDA or confidentiality clauses. "Portfolio use" is an industry standard right. Don't give it up without a specific discussion and, if necessary, compensation. Always define it as non-commercial use — you're showing your work, not reselling it.*

> ***Protects you from:*** *Finishing a beautiful job, watching it win awards, and not being able to show it to a single future client because you forgot to include a reel rights clause.*

---

## 5. KILL FEE

If Client cancels this project after signing but before completion, the following kill fee structure applies:

- Cancelled before Contractor has begun work: **Deposit (Section 2B) is forfeited. No additional fees.**
- Cancelled after work has begun but before 50% complete: `[50%]` of total project value, less any amounts already paid.
- Cancelled after 50% completion: `[75–100%]` of total project value, less any amounts already paid.

"Work begun" means: the first shoot day has occurred, or Contractor has delivered any element of the project, or Contractor has declined other work in reliance on this booking.

> **DECISION** *Adjust percentages based on how far along the work goes. The key principle: the later a cancellation happens, the more of your time has been consumed and the less likely you can replace the income. Scale accordingly.*

> ***Protects you from:*** *Blocking out three weeks for a project, turning down other bookings, driving to location, and then getting a text that says "we're going in a different direction." Kill fees are the industry standard — any professional client will expect to see one.*

---

## 6. INDEPENDENT CONTRACTOR STATUS

Contractor is an independent contractor, not an employee of Client. Contractor is responsible for all taxes on compensation received, including self-employment tax. Client will not withhold income tax, FICA, or other employment taxes on Contractor's behalf.

Contractor may perform services for other clients during the term of this Agreement, provided those engagements do not conflict with Contractor's obligations under this Agreement.

Client will not direct or control the method, manner, or means by which Contractor performs the services — only the results.

> **DECISION** *Do not modify this section. It exists to protect both parties. If a client tries to add language that gives them control over your schedule, equipment, or how you do the work, that's an employee relationship — which changes their tax obligations, your benefits eligibility, and their liability exposure. Consult an employment attorney if a client insists on control language.*

> ***Protects you from:*** *Being misclassified as an employee (which you likely don't want), and protects clients from the tax liability that comes with employee misclassification. This clause also preserves your freedom to take other jobs.*

---

## 7. REVISIONS AND CHANGE ORDERS

The services described in Section 1 include `[number, e.g., "two"]` **rounds of revisions**.

A revision is defined as: changes to the existing cut/grade/design within the agreed scope. A revision is not: new footage, new scenes, fundamental restructuring of the project, or additional deliverables not listed in Section 1.

Any work outside the original scope requires a signed Change Order (see attached Change Order form) and additional compensation agreed in writing before the work begins. Contractor is not obligated to begin out-of-scope work until a Change Order is signed.

> **DECISION** *Be specific about what counts as a revision. "One round of revisions" means one batch of changes — not unlimited back-and-forth within that round. Define it clearly or you'll spend a month in revision hell on a fixed-fee project.*

> ***Protects you from:*** *Scope creep — the slow accumulation of "just one more thing" requests that double your hours on a fixed-price job. The Change Order process gives you a documented mechanism to say yes to new work at a fair price.*

---

## 8. CONFIDENTIALITY

> **DECISION** *Include this section for corporate, commercial, or branded content clients. You may omit for narrative/artistic projects where public promotion is expected and desired by both parties.*

Contractor agrees to keep confidential all non-public information about Client's business, projects, and clients that Contractor encounters in the course of performing services. This obligation survives termination of this Agreement.

This clause does not restrict Contractor's portfolio rights as described in Section 4B, and does not prevent Contractor from discussing compensation, hours, or working conditions with other workers.

> ***Protects you from:*** *Accidentally disclosing a client's upcoming product launch or campaign strategy. It also protects you from overly broad NDAs — adding the carve-outs above preserves your reel rights and wage-discussion rights.*

## 9. INDEMNIFICATION

Each party will indemnify, defend, and hold harmless the other party from claims, damages, liabilities, and costs arising from the indemnifying party's own negligence, willful misconduct, or breach of this Agreement.

Contractor's total liability under this Agreement will not exceed the total compensation paid by Client to Contractor under this Agreement.

> **DECISION** *The limitation of liability cap is critical. Without it, a client could theoretically sue you for damages far exceeding what you were paid. This clause caps your exposure at the amount you earned — which is the industry standard limit for freelance engagements.*

> ***Protects you from:*** *Being sued for millions because a commercial you shot was later used in a way that infringed someone's rights — when that usage decision was entirely the client's. Mutual indemnification means each party is responsible for their own mess.*

---

## 10. REPRESENTATIONS AND WARRANTIES

Contractor represents and warrants that:

- They have the right to enter into this Agreement and perform the services.
- The work product, to the best of their knowledge, will not infringe any third party's intellectual property rights.
- They are not under any obligation to any other party that would conflict with this Agreement.

Client represents and warrants that:

- They have the right to enter into this Agreement.
- They have obtained all necessary permissions and clearances for any materials provided to Contractor (scripts, music, logos, footage, etc.).
- Compensation will be paid per the terms in Section 2.

> ***Protects you from:*** *Being held responsible for copyright issues created by the client's content (music they didn't clear, stock footage they didn't license, logos they used without permission). By requiring the client to warrant they've cleared their materials, you shift liability for their choices back to them.*

---

## 11. GOVERNING LAW AND DISPUTES

This Agreement is governed by the laws of the State of [Your State]

> **DECISION** *Use your state. This matters if there's ever a dispute — you want the case heard under laws you're familiar with, in courts accessible to you.*

The parties agree to attempt to resolve any dispute through good-faith negotiation before pursuing formal legal action.

> **DECISION** *Add an arbitration clause if you want to avoid court. Example: "Any unresolved dispute will be submitted to binding arbitration under the rules of* `[JAMS / AAA]` *in [Your City]*
> `." Arbitration is faster and cheaper than litigation for small disputes, but you give up the right to a jury trial. For most freelance work under $50,000, good-faith negotiation + small claims court is the practical approach — no arbitration clause needed.]`

> ***Protects you from:*** *Having to fight a dispute in the client's home state if they're in another city or state. Governing law and venue provisions matter more than most freelancers realize.*

---

## 12. GENERAL PROVISIONS

**Entire Agreement.** This Agreement, including any attached exhibits, constitutes the entire agreement between the parties regarding the services described herein. It supersedes all prior discussions and agreements.

**Amendments.** Changes to this Agreement must be in writing and signed by both parties.

**Severability.** If any provision of this Agreement is found unenforceable, the remaining provisions remain in effect.

**No Waiver.** Failure to enforce any provision does not constitute a waiver of the right to enforce it later.

**Counterparts / Electronic Signatures.** This Agreement may be signed in counterparts and by electronic signature, each of which is binding and constitutes an original.

> ***Protects you from:*** *The "that's not what we agreed to over email" problem. This clause says the signed contract is the deal — not the email chain, not the Slack thread, not what someone remembers being said on the phone.*

---

## SIGNATURES

**Contractor**

Signature: _____

Title: `[Your Role — e.g., Director of Photography]`

Date: _____

---

**Client**

Signature: _____

Name: `[Authorized Signatory Name]`

Title: `[Their Role — e.g., Executive Producer]`

Organization: `[Client Company Name]`

Date: _____

---

*This document was created with The Rate Guide Freelancer's Contract Pack. therateguide.com*

*This is a template, not legal advice. Have a licensed attorney review before first use.*